



Army Contracting Command-Rock Island Acquisition Instruction Supplement

August 2025

ACC-RI Acquisition Instruction Supplement

Version Control

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1.0	31 Mar 2018		AI issued
2.0	4 Feb 2019	Amy Knutson	Revised based on ODASA(P) comments
3.0	8 Apr 2019	Amy Knutson	Changed PARC to SCO, added sections 5115.303 and 5116.505-91.
4.0	10 May 2019	Amy Knutson	Added Table of Contents, cleaned up document
5.0	25 Jun 2019	Amy Knutson	Revised IAW HQ comments.
6.0	2 Aug 2019	Amy Knutson	Incorporated TMT and Warrant Reinstatement guidance
7.0	Dec 2019	Amy Knutson	Update links
8.0	Oct 2020	Amy Knutson	Updated links; added list of attachments; added 5106.302-1; Part 8, Part 49, and Part 52.
9.0	Nov 2020	Amy Knutson	Updated UCA and UCO definitization language in line with DFARS update.
10.0	Apr 2021	Amy Knutson	Made updates to the following sections: 5101.290; 5101.602-2-90, 5101.603-2, 5106.305; 5115.406-3; and added Parts 4, 12 and 17 (replaced Part 16). Revised numbering in all Sections to align with ACC AI.
11.0	Apr 2022	Amy Knutson	Updated links, management titles, and email addresses. Updated sections 5101.170, 5101.290, 5101.602-2-90, 5101.603-2, 5112.207, 5115.406-3, 5116.505-91. Added sections 5106.302-2, 5108.405-6, Part 13, 5116.505.
12.0	Apr 2023	Amy Knutson	Updated sections 5101.603-2, 5106.302-2, 5108.404, 15.4, 5116.505-91, 5117.74 and Attachment 52.1. Added section 5101.604 and Appendix AA.
12.1	Aug 2023	Amy Knutson	Added PCF dialog box info req inadvertently left out at 5101.290
12.2	Nov 2023	Amy Knutson	Removed section 5101.604 and replaced w/Attachment 1.7. Also added Attachment 1.8.

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12.3	Jan 2024	Amy Knutson	Updated sharepoint links, made minor corrections/revisions.
13.0	Sep 2024	Amy Knutson	Updated links and updated sections 5101.170, 5101.603-2, 5106.303-2-90, 5108.405-6, 5113.500, 5115.402-90, 5116.505, 5117.74, and 5143.201. Added Part 5145.103. Updated Attachment 1.7, 17.1 and Appendix AA.
13.1	Oct 2024	Amy Knutson	Added Section 15.5 to include requirement to provide redacted SSDDs with postaward debriefings. This requirement was established in 2018 within Debriefing QRC.
13.2	Dec 2024	Amy Knutson	Clarified PCF folders for property checklists at Part 45.
14	Mar 2025	Amy Knutson	Increased review threshold for PCO from \$1M-\$50M; added/updated board exceptions at 5101.170; revised routing process for boards, waived boards, and documents at 5101.290; revised routing at Attachments 1.1 through 1.6.; added Attachment 1.9.
14.1	Jun 2025	Amy Knutson	Updated sections 5101.602-2-90 and 15.4; added section 33; added attachment 15.1 and 15.2.
14.2	Aug 2025	Amy Knutson	Updated section 5101.603-2 and added S3COE language at 5101.602-2.

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Acquisition Thresholds Quick Reference Guide

PART 1 – FEDERAL ACQUISITION REGULATION (FAR) SYSTEM

Subpart 1.1 – Purpose, Authority, Issuance

5101.101 Purpose.

This U.S. Army Contracting Command – Rock Island (ACC-RI) Acquisition Instruction (ACC-RI AI) Supplement, is a supplement of the Army Contracting Command Acquisition Instruction (ACC AI). This ACC-RI AI is authorized by Army Federal Acquisition Regulation Supplement (AFARS) 5101.304 and establishes local mandatory processes and procedures necessary to implement the FAR, Defense Federal Acquisition Regulation Supplement (DFARS), DFARS Procedures, Guidance and Information (PGI), and AFARS. It is applicable to acquisition related activities for which the ACC-RI Senior Contracting Official (SCO) has responsibility and has established processes that differ from the ACC-AI.

5101.170 Peer reviews.

1. DoD peer reviews.

a. Prior to a DoD or HCA Peer Review, a SCO level peer review will be conducted. Include a clearance memo signed by the SCO in the file, which satisfies the requirement for SCO concurrence of this subpart.

b. Local Guidance: The Contract Specialist/Procuring Contracting Officer (PCO) will as soon as possible:

1) Contact the Staff Action Control Officer to reserve SCO Conference room for the Peer Review.

2) Provide the Staff Action Control Officer with a list of the Defense Pricing and Contracting team members (with their respective positions/titles) so that she may refer the PCO to the Protocol Office if necessary and act as a liaison between the Protocol Office, Senior Executive Service (SES) team members participating in the review and the PCO as needed.

3) After DoD Peer Review, the PCO must prepare and distribute a Memorandum for Record (MFR) findings and final resolution document in accordance with (IAW) DFARS PGI 201.170-3(f) A copy shall be maintained in the official solicitation/contract file.

2. Component peer reviews: Preaward peer reviews for competitive and non-competitive procurements valued at less than \$1billion (B).

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a. The SCO has been delegated the authority to chair Solicitation Review Boards (SRBs) and Contract Review Boards (CRBs) for competitive and non-competitive procurements valued at \$50 million (M) to less than \$1B.

b. The SCO has waived SRBs and CRBs for all procurements valued \$50M to less than \$100M (see exception 3.a. below) and redelegated the authority to chair procurements valued \$100M to less than \$250M to the Chief of the Contracting Office (CoCO). The SCO has delegated the CoCO authority to the Director of its respective Directorate. In the absence of a Director, the Acting Director of the Directorate is delegated the authority of the CoCO. Delegation to the Acting Director must be in writing.

3. Exceptions: A SCO board, CoCO board, individual board waiver, or cabinet review (with the exception of subparagraph a and g) is not required for the following actions:

a. Procurements valued \$50M to less than \$100M. Although an SRB/CRB or individual board waiver is not required for this dollar threshold, PCF cabinet reviews* are required to be completed prior to solicitation and award as shown in [Attachment 1.1](#) for waived boards. *Note legal will only review individual document(s) requiring legal review; therefore, do not staff the entire cabinet to legal.

b. Exercise of an evaluated option.

c. Award of matrix priced items, i.e., task orders/delivery orders/modifications under a single award contract or agreement.

d. Modifications definitizing an Undefined Contract Action/Unpriced Change Order (UCA/UCO) where the initial UCA/UCO was part of a prior award review.

e. Incremental funding modification, provided that the initial funding action was reviewed in a prior award review. Initial funding actions are not considered incremental funding. Actions initially funded at less than full funding shall be subject to review based on the total potential amount of funding. Subsequent incremental funding actions within the scope of the initial review are considered incremental funding and are exempt from further review provided that no other type of funding action is included in the same modification.

f. Settlement of Claims

g. Solicitation and award of sole-source actions (i.e., actions supported by a Justification and Approval, Justification for Exception to Fair Opportunity, Limited Source Justification, or otherwise solicited to, negotiated with, and awarded to one source). Although an SRB/CRB or individual board waiver is not required for solicitation and award of sole-source actions valued \$50M to less than \$1B, PCF cabinet reviews* are required to be completed prior to solicitation and award as shown in [Attachment 1.1](#) for

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waived boards. *Note legal will only review individual document(s) requiring legal review; therefore, do not staff the entire cabinet to legal for concurrence.

h. A local SRB is not required prior to an HCA Phase 2 (request for final proposal revisions) competitive peer review.

4. To schedule an ACC-RI SCO or CoCO SRB/CRB send the PCF cabinet*, which shall include a written [Local Peer Review Request](#), to the Review and Compliance Team Lead (sarah.e.sims4.civ@army.mil). PCO, Branch Chief, and Legal** review must be completed prior to sending the PCF cabinet to the Review and Compliance team to schedule the board. The Policy Desk Review of the PCF cabinet will happen concurrently with the board.

*Note that Source Selection Decision Documents (SSDDs) and Task Order Decision Documents (TODDs) should not be signed by the Source Selection Authority (SSA) prior to conducting the CRB. If the SSDD or TODD is signed, the board will not review that document.

**Legal will only review individual document(s) requiring legal review; therefore, do not staff the entire cabinet to legal for concurrence.

5. SRBs/CRBs are conducted within five working days after Policy's initial receipt of a complete package which has received the reviews indicated in paragraph 4 above. Additional time should be allowed in procurement milestones for resolving board comments/concerns and staffing the package through the SCO or CoCO chairman for clearance to release the solicitation or award the contract.

6. ACC-RI SCO and CoCO SRB/CRB Board Members: A Procurement Analyst will be assigned as an action officer to schedule the SRB/CRB, facilitate and chair the SRB/CRB, take minutes of the meeting, record board recommendations, and disseminate board minutes.

Other members include GS14/15 representatives for a SCO Board and GS13, or higher, representatives for a CoCO Board from the following functional areas:

- Contracting (from a different directorate)
- Legal (other than the Attorney Advisor who reviewed the package)
- Small Business
- Requirements Community (if requested by Contracting)
- Pricing (other than program Cost/Price Analyst)

Representatives from other organizations may be invited to participate at the discretion of the board facilitator. PCOs are responsible for inviting and coordinating Requiring Activity participation. Whenever possible, the same board members shall participate in both the SRB and CRB.

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7. The PCO must prepare a synopsis of findings and resolution document. Board reviews represent recommendations to the PCO. PCOs shall ensure copies of any pertinent documents are up to date and implement the recommendations or otherwise resolve and document the file accordingly and prepare the SRB/CRB clearance memo and package for staffing to the SCO or CoCO as follows:

- SCO or CoCO Clearance Memo
- PCO Resolution of SRB/CRB comments
- SRB/CRB Minutes
- Request for SCO or CoCO SRB/CRB

8. Board Waivers: The PCO may request approval to waive the board from SRB/CRB chair. Use ACC-RI SRB/CRB waiver template found [here](#) under the sub-category "Miscellaneous". See [Attachment 1.1](#) for routing of board waivers.

Subpart 1.2 – Administration

5101.290 Routing documents and mailing addresses.

1. PCF Staffing Process:

a. When submitting a document, solicitation, contract, task/delivery order or a modification for policy review in PCF, forward to the Review and Compliance Team Lead at sarah.e.sims4.civ@army.mil for assignment. If a board is required, ensure Legal* review is completed prior to submitting to Review and Compliance. Both cabinet and document reviews must have the following information in the PCF dialog box:

- Type of contract action
- Contract or Solicitation number
- Dollar value of the action
- Supply/Service/Commercial/Construction
- Who has reviewed and concurred on the package or document
- A statement that all comments have been resolved

*Legal will only review individual document(s) requiring legal review; therefore, do not staff the entire cabinet to legal for concurrence.

b. When routing a document for concurrence in PCF:

- 1) Use the "Submit for Concurrence" feature (REVIEW/APPROVAL ACTIONS >> DOCUMENT REVIEW >> SUBMIT FOR CONCURRENCE). This option should be used when submitting as part of the formal review process and NOT used for the final approval authority's signature. When staffing documents in PCF for concurrence, forward as a document (not cabinet) for concurrence, highlighting the actual document that is being staffed. Staff the document sequentially in the order you would if you were staffing in hard copy. Do not send out to all offices requiring concurrences at the same time.

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- 2) After each review, it will be returned to the initiator to forward to the next person in the staffing cycle except when the document will be concurred on by Chief Counsel. In these instances, the Attorney Advisor will forward onto Chief Counsel directly if no revisions are necessary. Refer to the staffing charts in Attachment 1.2 for further clarification on staffing.
- 3) Note that PCF will generate an automatic notice (email) to the initiator once the Chief Counsel and SCO have completed their concurrence/review/approval in PCF, but NOT generate the automatic notice when the document is forwarded by the program attorney-advisor to the Chief Counsel. In order to see current status of a document (and with which individual it currently resides for action), you can click on the PCF tab entitled "Documents/Cabinets I've Submitted for Workflow Action."
- 4) Only use the "Submit for Review" option when wanting a draft review done, as this option does not satisfy the concurrence requirement. Do not use the "Submit for Approval" option, even when routing for approval.

c. In PCF, the document must always be submitted to the Competition Advocate or the SCO using the "Submit for Signature" (never use "Submit for Approval") feature if the Competition Advocate or SCO will be signing the document. If there is a document that will be sent to the SCO that is out of the ordinary, i.e. contentious or strategy related, send the SCO an email containing a short summary of the action prior to sending the document. The email can come from a Director, Branch Chief or PCO. Also, if any document needs priority handling, please contact the front office so they can alert the SCO.

d. Documents must always be submitted for signature as a PDF. Also ensure that there is a digital signature box for the approver's signature in the PDF.

e. Submit documents as a Word document for concurrence to both Policy and Legal.

f. When staffing documents for approval higher than the SCO such as to the Senior Services Manager or Senior Procurement Executive, send both the signed PDF and the Word version of the document.

g. When staffing through Policy, forward to Sarah Sims at sarah.e.sims4.civ@army.mil for assignment to a procurement analyst. Policy will provide comments and recommendations and return to the contract specialist to forward to the next office for concurrence.

h. To make changes to a document in PCF, highlight the appropriate document and choose OPEN DOCUMENT. Make any necessary changes and save a copy of the document to your computer (desktop, My Documents, etc.). Re-highlight the document

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in PCF and choose the DOCUMENT ACTIONS menu followed by UPDATE SELECTED DOCUMENT. Add any necessary comments, select the BROWSE button to find your saved document, and choose UPLOAD FILE. The new version of the document containing all changes has now been uploaded into PCF. Using this “update selected document” feature in PCF will ensure all concurrences are retained and available in the document’s activity log.

i. To view the routing history and any comments associated with a document being reviewed, highlight the appropriate document and choose the ACTIVITY LOG menu, followed by DOCUMENT LOG. Click on any portion of the routing process and select the VIEW button under the COMMENTS column to open the associated comments.

j. The PCO is responsible for adjudicating each reviewer’s comments/revisions/suggestions and must include the document with each reviewer’s comments in the file.

2. Staffing Order:

a. For solicitations, contracts, task/delivery orders, and modifications below \$50M, the PCO is the only required reviewer and provides concurrence on the cabinet. The PCO may choose to send these items to the Branch Chief.

b. Staffing for waived SRBs/CRBs, including soliciting and awarding task orders, delivery orders and modifications valued at \$50M to < \$1B can be found at [Attachment 1.1](#).

c. Staffing for convened SRB/CRB including soliciting and awarding task orders, delivery orders and modifications ≥\$100M to < \$1B can be found at [Attachment 1.1](#).

Note: SRB/CRBs ≥ \$1B for non-competitive actions require Defense Pricing, Contracting and Acquisition level peer review. SRBs/CRBs ≥ \$1B for competitive actions require HCA level peer review.

d. Staffing of acquisition documents for (1) Competition Advocate Approval (J&A/Limited Source Justification (LSJ)/Justification for Exception to Fair Opportunity (JEFO)); (2) SCO Approval (J&A/LSJ/JEFO), and (3) SCO Approval/Concurrence (other than J&A/LSJ/JEFO) can be found at Attachment 1.2. Routing for acquisition strategies can be found at Attachment 1.3 and routing for acquisition plans can be found at Attachment 1.4. Each reviewer should strive to complete their document review within three business days. If additional time is needed, discussion should take place with the PCO/Contract Specialist.

e. For documents requiring Headquarters (HQ) ACC Deputy to the Commanding General/Head of the Contracting Activity approval, see the [HQ ACC AI](#) for staffing instructions.

f. Documents Requiring Headquarters Department of the Army (HQDA) review, coordination, and/or approval are required to be input into HQDA's Enterprise Task Management System (ETMS2). See [Attachment 1.5](#) for routing process and [Attachment 1.6](#) for ETMS2 Information Sheet.

Subpart 1.6 – Career Development, Contracting Authority, and Responsibilities

5101.602-1 Authority.

Local Delegations of Authority

5101.602-2 Responsibilities

Source Selection Support Center of Excellence (S3COE):

1. The Army's S3COE provides expert support to contracting activities throughout the Army and is a valuable resource for ACC-RI. While S3COE inclusion is optional, it is highly encouraged for any competitive requirement, particularly for complex and/or high dollar value procurements. Early engagement with the S3COE – ideally when a requirement is known – can significantly improve the efficiency and effectiveness of the acquisition process. The s3COE can provide valuable assistance in the following areas:

- a. Market Research: Assistance with conducting thorough market research to identify potential sources and assess industry capabilities.
- b. Industry Engagement: Support in planning and executing effective industry engagement strategies.
- c. Milestone Planning: Guidance on establishing clear milestones, tailored to the complexity of the requirement. This includes ensuring appropriate phasing and sequencing of milestones to manage risk and maintain momentum.
- d. Acquisition Planning/Strategy: Development and refinement of comprehensive acquisition plans and strategies.
- e. Development of Evaluation Criteria: Assistance in crafting clear, concise, and legally defensible evaluation criteria, specifically for acquisitions utilizing Subparts 8.4 and 16.5, and Parts 13, 14, and 15, to include those utilizing FAR Part 12 commercial practices.
- f. Source Selection Team Training: Providing tailored source selection training to ensure all members of the source selection team understand their role and responsibilities, as well as the information needed to put pen to paper and write quality evaluations.
- g. Integrated Product Team (IPT) Engagement and Assistance: Facilitating and supporting IPT engagement throughout the acquisition process.
- h. FAST TRACK Training and Set-Up: Providing training and assistance with the implementation of FAST TRACK procedures for streamlined procurements. FAST TRACK is an Artificial Intelligence System designed to assist in technical and past performance evaluations.

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- i. Streamlined Source Selection Procedures: Support in implementing streamlined source selection procedures, including but not limited to:
 - i. Oral Presentations
 - ii. Entry-Gate Criteria
 - iii. Use of AI tools
 - iv. Comparative Evaluation
 - v. Confidence Ratings
 - vi. Highest Technically Rated Offeror with a Fair and Reasonable Price (HTRO)
 - vii. Product Demonstrations

2. Early engagement streamlines the process when a solicitation is issued, ultimately accelerating procurement timelines.

S3COE Contact Information: usarmy.ria.acc.mbx.s3coe@army.mil

5101.602-2-90 Legal Reviews

1. Legal reviews shall be routed through PCF prior to execution of the action. The following contract actions valued at \$50M or more shall be sent to the legal office for review and concurrence:

a. Acquisition Strategies

b. Source Selection Plans, Source Selection Evaluation Reports, Competitive Range Determinations, Source Selection Comparative Analyses, and Source Selection Decision Documents; and comparable competitive documentation in accordance with FAR parts 8, 13, and 16.

c. Reference ACC-RI Acquisition Instruction Supplement 5101.170 Section 2. Component peer reviews for procedures on legal review of solicitations, contract awards, contract modifications, or delivery orders/task orders. Note that legal review is also required for any amendments issued from solicitations that were previously reviewed by legal.

Note: Contract actions of a lower dollar value may also be sent to the legal office for review and concurrence at the PCO's discretion provided the PCO has documented review of the action prior to sending to the legal office IAW section 4(c) of the legal review process below. For legal review guidance on Other Transaction Authority actions see [Appendix AA - OTA Local Guide](#).

2. Regardless of the dollar value, the following items require Legal review:

- a. Acquisition Plans (IAW AFARS 5107.103-90(d)(4))
- b. Ratification packages (IAW FAR 1.602-3(c)(5))

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- c. Obligation of expired funds and all replacement contracts after contract terminations
- d. Determinations of non-responsiveness
- e. Determinations of non-responsibility
- f. A-76 actions (insourcing and outsourcing of personnel)
- g. Any matters appearing to involve fraud or other potential criminal activity on the part of the contractor shall be referred to the Procurement Fraud Attorney
- h. BRAC matters
- i. Proposed deviations from the FAR or any of its supplements
- j. Review and settlement of claims and requests for equitable adjustment
- k. Contract changes that are not covered by the changes clause of the contract or that the contractor has indicated a reluctance or unwillingness to accept
- l. Documents to be signed or concurred on by the SCO or higher
- m. Evaluation Notices (IAW DoD Source Selection Procedures at DFARS 215.300)
- n. Redacted Source Selection Decision Documents for release to offerors
- o. Non-DoD Contract Approval (This document is a requiring activity document and should be reviewed by the requiring activity's legal counsel. However, contracting legal counsel can review in the absence of requiring activity legal counsel) (in accordance with AFARS 5117.770)
- p. Terminations (All types including Convenience, Cause/Default, or mutual agreement)
- q. Proposed show cause letters, cure notices, and forbearance letters
- r. Stop work orders; cancellations of stop work orders; or extensions of the time period applicable to a stop work order
- s. All Protests (to the Contracting Officer, AMC, GAO and CoFC)
- t. Legal concurrence required prior to taking any corrective action on any protest
- u. Demand letters for money alleged to be owed to the Government
- v. Justification and Approvals, Limited Source Justifications, Justification for Exception to Fair Opportunity and similar documents limiting competition must be reviewed by legal for those actions that are to be approved by the Competition Advocate or higher level
- w. Documents or actions for which the regulations or policy specifically require legal/office of counsel review or consultation
- x. Contracting Officer's Final Decision
- y. During Army contract administration, any contractor assertion that it is required to act IAW law, legal obligation or legal proceeding that is outside of the Army contract, the contracting officer shall contact the assigned legal advisor.
- z. FAR Part 18 emergency acquisitions. Legal review is required to determine that the requirement is within the context of the named contingency event and that the requiring activity has provided a fiscal law review of the action.
- aa. Mandatory notice and subsequent inclusion of legal counsel in work related to: protests, claims/disputes, federal/state court actions (eg COFC protest, Touhy requests), state/federal boards (eg ASBCA, MSPB).
- bb. All issues and documents related to intellectual property or export control for example: government data rights, copyrights, end use agreements, licenses, patents, royalties and trademarks.

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- cc. All non-FAR based contract vehicles not covered by Appendix AA, for example: Cooperative Agreements, Grants, Inter-agency Support Agreements, Direct Sales, and Public Private Partnerships.
- dd. Freedom of Information Act Requests.
- ee. Congressional Inquiries related to contract actions.
- ff. Violations or possible violations of Procurement Integrity Act (AFARS 5103.104-7).
- gg. When tax questions arise, contracting officers should request assistance from the agency-designated legal counsel (FAR 29.101(a) and DFARS 229.101(a)).
- hh. Before novation and change-of-name agreements are executed, the responsible contracting officer shall ensure that Government counsel has reviewed them for legal sufficiency (FAR 42.1203(f)).
- ii. For processing and disposition of an approved contractor's adjustment request under Pub. L. 85-804 and E.O., Contracting officers shall prepare the preliminary and final record and coordinate with legal counsel prior to submitting to the ODASA(P) (AFARS 5150.103(2)(b)).

3. When a policy review is required, it shall be completed prior to submitting the action for legal review, except in the case of those actions that require a SCO or CoCO Level Review Board, in which case the legal review shall occur prior to the policy review.

4. Submission and Receipt of Legal Reviews:

- a. Legal review submission packages shall be submitted via PCF and only the individual document(s) requiring legal review shall be routed for concurrence, using the Document Review, Submit for Concurrence option in PCF. Each submittal must contain a brief statement that identifies the concerns, issues, or desired actions of the attorney in the PCF dialog box.

* Legal reviews shall no longer be conducted on entire PCF cabinets, although legal counsel shall have access to the entire PCF cabinet.

- b. When appropriate, PCOs are encouraged to route draft documents for early review and coordination with the assigned attorney. The assigned attorney will make their best efforts to provide legal review of the draft documents but may still review and comment on the final document once it is sent for formal legal review.
- c. The PCO shall review and concur on the document prior to routing for legal review. Documents not reviewed by the PCO shall be returned by the legal office. PCO concurrence shall be documented via individual document PCF dialog box.
- d. The typical legal review timeline shall be no more than 3 business days but can be longer or shorter depending on the level of complexity. If the review is expected to be longer than 3 business days, the attorney shall coordinate with the PCO on a revised completion date. If the PCO intends to request an

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accelerated review be completed in less than 3 days, the PCO shall communicate with the attorney as early as feasible to provide advance notice, ensuring that the PCO's branch chief and reviewing attorney's division chief are notified as well.

- i. Legal reviews and comments shall focus on the legal sufficiency of the action. Business judgment advice or administrative changes may be suggested but should not hold up the review and concurrence and do not require adjudication by the PCO prior to moving forward.

- ii. For Actions Not Requiring Legal Signature:

- 1. After 3 business days, in absence of a response from legal or coordination on additional time for review, the PCO will elevate the lack of response to the CoCO who may determine to engage with the legal division chief for resolution or to waive the legal review for the instant action. The CoCO shall document a legal review waiver decision due to lack of timely response via individual document PCF dialog box.
 - 2. Legal review should concur on the document subject to resolution of comments unless there are significant concerns affecting legal sufficiency. When legal reviews identify significant concerns affecting legal sufficiency, the reviewing attorney may withhold concurrence until seeing the final revised document, after clearly communicating this information to the PCO and contracting branch chief.

- iii. For Actions Requiring Legal Signature

- 1. When providing legal signature for documents which have already been reviewed (i.e. final routing of a J&A after legal concurrence), the reviewing attorney shall sign and return the document within 2 business days.
 - 2. When the action requires a legal signature and is being reviewed by the attorney for the first time, the time standards in 4(d), above, shall apply.

5. Early involvement of legal counsel is very important. The Contracting Officer should contact their legal representative at the outset of any procurement action and communicate frequently. A legal representative will attend the initial Acquisition Integrated Process Team meeting and Whiteboard meetings for all actions valued at \$50 million or more and will also attend other team meetings, as appropriate. Regardless of dollar value, an attorney shall be contacted and requested to provide an ethics briefing to a source section evaluation team prior to evaluations beginning.

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6. Communications:

- a. Communications with Non-Government Attorneys. If ACC-RI employees are contacted by any non-Government attorney, the employee shall immediately refer the attorney to the AMC Legal Center-RIA, without discussion of the issue.
- b. Communications with Government Attorneys. If ACC-RI employees are contacted by other Government attorneys, the employee shall promptly involve the AMLC-RIA Legal Center for further coordination.
- c. Communications on Active or Imminent Litigation. AMC Legal Center-RIA shall be immediately notified and coordinated with regarding any matter in which litigation is active or imminent. Litigation is "active" as soon as verbal or written notice is received that a matter is the subject of a bid protest, appeal or lawsuit at the agency, Government Accountability Office (GAO), the U.S. Small Business Administration, the Armed Services Board of Contract Appeals (ASBCA), the U.S. Court of Federal Claims (COFC) or any other state or federal court of the United States. Litigation is "imminent" as soon as any contractor or other private party indicates, either verbally or in writing, the plan or possibility to proceed with a lawsuit or other legal action.

7. Legal review may be required any time at the SCO's discretion.

5101.603-2 Selection.

1. ACC-RI WARRANTING PROGRAM PURPOSE: IAW the Army Warranting Program Guide and the ACC Warranting Program, ACC-RI issues the following local implementation of these policies. This directive is not a stand-alone document and must be read in coordination with the Department of Defense (DoD) Contracting Officer Warranting Program Model, the Army Warranting Program Guide, the Army Contracting Command Warranting Program, and all applicable regulations.

2. REFERENCES:

a. Army Warranting Program Guide Version 9 dated May 2024, found at AFARS 5101.603-2.

b. Army Contracting Command Acquisition Instruction

c. [Memo, Army Contracting Command – Rock Island, August 2025, subject: Contracting Officer Review Board – Competitive Recruitment](#)

3. WARRANT REQUESTS/CONTRACTING OFFICER REVIEW BOARDS (CORBs):

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a. Warrant requests shall come from the candidate's Branch Chief or Director via email to the Contract Support Branch Chief, and contain the following: warrant classification/dollar authority, justification, and whether the warrant is for a temporary or permanent promotion.* Upon receipt, the Contract Support Branch Chief may advance the candidate's recommendation to the CORB members.

* Reference Table 1 in the Army Warranting Program Guide for fixed warrant value thresholds, contracting certification level requirements, and minimum years of experience and specific training.

b. CORBs are required in these circumstances:

1) Competitive recruitment where the position requires a Contracting Officer warrant.

2) Non-competitive promotions/reassignments to a position that requires a Contracting Officer warrant (ex. rehired annuitants).

3) Increases in warrant classifications, unless waived by the SCO. Branch Chief or Director shall send a CORB waiver request to the Contract Support Branch Chief which includes the basis of the waiver. The Contract Support Branch Chief will coordinate approval with the SCO and will prepare a Memorandum for Record to document the waiver.

4) Warranting a 51C position.

5) SCO discretion.

c. The CORB process is as follows:

1) Select CORB members: The members selected will coincide with the warrant classification and type of work to be conducted. At least one of the members must have, or previously had, a warrant equal to or greater than the warrant classification requested.

a) Select interview questions. For each question, a set of guidelines will be developed which will outline the elements that must be addressed by the candidate in order to receive a passing evaluation. Board questions will derive from the list of questions found at the [Contract Support Branch SharePoint page](#) under Resources "Warrant Information".

b) The ACC Contracting Officer Warranting Program can be found in the [ACC AI](#).

2) Conduct the CORB: Boards for applicants on-site will be held in person. When boards cannot be held in person, they may be conducted through Microsoft Teams

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utilizing the video function. In either case, reference materials are not authorized. Candidates may bring blank paper and a pen to jot down notes. Boards may vary in terms of length, questions and scenarios.

3) Deliberate: Upon completion, the CORB members will deliberate to reach a consensus as to whether the candidate passed the board. If a consensus cannot be reached, the board Chair will make the final decision.

4) Document: The CORB members will document the results of the board and clearly address the rationale for each result.

5) Notify: Candidates will be notified and provided the board results. A debriefing outlining general areas for improvement will be given to those who do not receive a passing notification.

6) Resubmit: Supervisors may request a second board for unsuccessful candidates no earlier than 30 calendar days after the initial board. Candidates unable to receive a passing evaluation from the second board must wait one year from the date of the second board to schedule a subsequent board. During that year, the candidate must demonstrate an effort to increase experience, knowledge, and skills through additional training and/or on-the-job opportunities.

7) Prepare warrant application: Upon receiving notification of passing, candidates will be instructed to submit the completed warrant application package via VCE-Warrants to the appropriate Branch Chief. Applications in hard-copy format will not be accepted.

4. VCE-WARRANTS APPLICATION POST CORB:

a. A warrant application includes:

1) All required fields completed in VCE-Warrants

2) Legacy Defense Acquisition Workforce Improvement Act Contracting Certifications or the Back-to-Basics DoD Contracting Professional Certification.

a) If the applicant does not have the required training for the requested warrant, the Branch Chief or Director may request an exception. The Branch Chief or Director shall send the training exception request to the Contract Support Branch Chief which includes the basis for the exception and time-frame requested to complete all required training. The Contract Support Branch Chief will coordinate approval with the SCO and prepare a Memorandum for Record to document the exception.

b) Upon SCO approval, the signed warrant will be uploaded to VCE-Warrants.

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5. **TERMINATION OF WARRANTS:** Termination of warrants, as outlined in the Army Warranting Program Guide, shall be accomplished by a Warrant Termination memorandum signed by the SCO and acknowledged by the individual whose warrant is being terminated.

6. **SUSPENSION OF WARRANTS:** Suspension of warrants, as outlined in the Army Warranting Program Guide, shall be accomplished by a Warrant Suspension memorandum signed by the SCO and acknowledged by the individual whose warrant is being suspended.

7. **ADDITIONAL WARRANTS:**

a. **Agreements Officer Warrant Requirements:**

1) Warrant requests shall come from the candidate's Branch Chief or Director via email to the Contract Support Branch Chief and contain warrant classification/dollar authority and justification. Upon receipt, the Contract Support Branch Chief may advance the candidate's recommendation to the Agreements Officer Review Board (AORB) members.

2) Applicant must possess an unlimited PCO warrant.

3) Applicant must complete required training IAW 5.3.2(5) of the Army Warranting Program Guide.

4) Applicant must complete CLE-068 (or ACQ 0720) Intellectual Property and Data Rights.

5) Applicant must read OTA Guide published by the Office of the Assistant Secretary of the Army (Acquisitions, Logistics and Technology) and provide a statement of completion.

6) An AORB is required to obtain an Agreements Officer warrant. The same process for CORBs, as detailed in paragraph 3.c. above, will be followed, except for board questions. Board questions for AORBs will be developed from a list of resources. Those resources can be found on the [Contract Support Branch SharePoint](#) under the "Resources" section at the "Warrant Information" link.

b. For other warrant requests (e.g. Direct Sales, Grants), contact the warrant program POC, Alejandra Figueroa, email Alejandra.c.figueroa.civ@army.mil, for specific instructions.

8. **WARRANT REINSTATEMENT:** The following procedures apply regarding Contracting Officer, Contracting Officer with Direct Sales Authority, and Grants/Agreements Officer warrant reinstatement: In the event the SCO terminates a warrant due to the warranted individual departing ACC-RI, the SCO may elect, at his or her discretion, to reinstate the warrant authority if the individual returns to ACC-RI within

12 months of warrant termination. (The individual must re-apply for his/her warrant in the VCE-Warrants in order for the warrant authority to be reinstated.) If the individual returns to ACC-RI after 12 months from the date of warrant termination, the returning individual must reapply for his/her warrant in accordance with the procedures set forth in paragraph c. above, to include successful completion of a CORB/AORB. At his or her discretion, the SCO may also require individuals returning to ACC-RI within 12 months of warrant termination to reapply for a warrant in accordance with paragraph c. above, to include successful completion of a CORB/AORB.

PART 4 – Administrative and Information Matters

Subpart 4.8 – Government Contract Files

5104.802 Contract Files.

The ACC-RI PCF File Index shall be utilized for all acquisitions. This index incorporates the ACC Electronic Acquisition File Index, Peer and Policy Review Checklist, and DASA(P) Contract File Index. The PCF File Index institutes standardized naming convention of documents within the center, ensures cabinets are sufficient and construct a complete history of the action, and gives the ability to annotate alternative locations for documentation. The PCF File Index can be found [here](#).

5104.803 Contents of contract files.

The Modification Memorandum for Record (MFR) shall summarize the need for a modification and rationale for the authority and shall be included in the contract file. The Modification MFR can be found [here](#).

PART 6 – COMPETITION REQUIREMENTS.

SUBPART 6.3 – Other Than Full and Open Competition

5106.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

The Request for Information (RFI)/sources sought required in support of FAR 6.302-1 and FAR 13.501(a)(1)(i) J&As must be issued in support of the specific requirement covered by the J&A. The information in the RFI/Sources Sought regarding the requirement (quantities, period of performance, description/scope of requirements, etc.) must be consistent with the information in the J&A. For example, if the J&A is being processed to award a bridge contract to allow time for a competitive follow-on effort to be awarded, an RFI or sources sought issued in support of the competitive follow on would be insufficient to cover the RFI/sources sought requirement for the J&A/bridge contract. The period of performance for the two efforts in this example are likely entirely

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different, making responses received as a result of the “competitive” RFI/sources sought inapplicable to the non-competitive/bridge effort.

5106.302-2 Unusual and compelling urgency.

Concurrence from the Competition Advocate and Legal Advisor must be obtained **PRIOR** to issuance of award (including an undefinitized action) of an urgent action if the J&A approval will not be obtained until after award. This concurrence can be verbally, via email, or via Microsoft Teams and is to ensure Competition Advocate and Legal are in agreement with the use of this authority before award is made.

All justifications using Urgent authorities must be staffed with a Statement of Urgency written and signed by the customer. It must factually establish the urgent need and explain the circumstances leading to the emergency. It should include a discussion and dates for when the requirement was first known (by the requiring activity) and the required performance/delivery date. If the date the requirement became known was such that normal contracting and production lead times could have achieved the required delivery date, explain the reason for the delay in initiating the acquisition.

5106.303-2-90 Format and submission of the justification review and justification and approval documents.

1. The Limiting Competition Quick Reference Card is a resource that provides a snapshot on the approval thresholds, limiting competition templates/ guidance, staffing and routing process, requirements to post, redaction procedures, markings, and helpful hints. This can be found on SharePoint under [Quick Reference Cards](#).

2. Competition Advocate Sync Process

All teams with limiting competition documents over \$750K are required to participate in the Competition Advocate Sync. These syncs occur the first Wednesday (1330-1430) and third Tuesday (1000-1100) of each month. Teams are encouraged to schedule the sync early in the requirement process to ensure concerns are resolved prior to writing the limiting competition document.

Once the need for a sync is identified, the Contracting Officer / Contract Specialist shall complete Competition Advocate Sync slides located here:

[ACC-RI Support - \(CCRI-OQP\) Policy Related Documents - Templates - Limiting Competition \(sharepoint-mil.us\)](#) and submit in Teams at [CONOPS - SUBMIT Comp Ad Sync Brief HERE - All Documents \(sharepoint-mil.us\)](#)

The Competition Advocate team will review slides and send a meeting invite to Director, Branch Chief, Contracting Officer, and Contract Specialist.

At the sync, Contracting Officer / Contract specialist will discuss the following:

- a. An overview of the requirement.

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- b. A brief review of the prior limiting competition document and whether anything has changed, if applicable.
- c. Sufficient information about the planned action (e.g. number of awards, period of performance, milestones of follow-on award).
- d. The market research conducted to support restricting competition
- e. Proposed authority and rationale to justify limiting competition.

3. The routing process for J&As/JEFOs/LSJs can be found at [Attachment 1.2](#).

PART 8 – REQUIRED SOURCES OF SUPPLIES AND SERVICES

Subpart 8.4 – Federal Supply Schedules

5108.404 Use of federal supply schedules.

The General Services Administration (GSA) Customer Service Director for ACC-RI is Ms. Michelle (Shelley) Breitbach, PH: 312-509-5989, email: michelle.breitbach@gsa.gov.

For Scope Review or Market Research, please use [GSA Rapid Review Research Form](#).

5108.405-6 – Limited sources.

1. Urgent Actions

Concurrence from the Competition Advocate and Legal Advisor must be obtained **PRIOR** to issuance of award (including an undefinitized action) of an urgent action if the LSJ approval will not be obtained until after award. This concurrence can be verbally, via email, or via Microsoft Teams and is to ensure Competition Advocate and Legal are in agreement with the use of this authority before award is made.

2. Competition Advocate Sync Process

All teams with limiting competition documents over \$750K are required to participate in the Competition Advocate Sync. See paragraph 5106.303-2-90(2) for further instructions.

PART 12 – ACQUISITION OF COMMERCIAL ITEMS

SUBPART 12.2 – Special Requirements for the Acquisition of Commercial Items

5112.207 Contract type.

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1. In accordance with FAR 12.207(e) and FAR 16.301-3(b), the use of cost-reimbursement type contract is prohibited for the acquisition of commercial products and services. Based on legal guidance, including a de minimus Cost Reimbursable (CR) Contract Line Item Number (CLIN) (i.e., travel, other direct costs, etc.) in an otherwise Firm-Fixed-Price (FFP) commercial contract does not convert the contract into a cost-type contract and is not legally objectionable. Neither regulation nor policy draws a definitive line as to when a FFP contract becomes a hybrid FFP/Cost-type contract by reimbursing incidental work under a CR CLIN; therefore, whether incidental CR CLINs can be inserted into any particular FFP commercial contract must be determined on a contract-by-contract basis.

2. If a PCO believes it is in the Government's best interest to use an incidental CR CLIN in a commercial contract, he/she must:

- a. Document the file with a determination that the CR CLIN is of de minimus value.
- b. On contract actions over \$1M and less than \$50M, Branch Chief* must concur on determination.
- c. On contract actions over \$50M, Director* must concur on determination.

*Branch Chief or Director should request legal review if there seems to be a "suspicion" or indication that the CLIN would not be de minimus.

PART 13 – SIMPLIFIED ACQUISITION PROCEDURES

SUBPART 13.5 – Simplified Procedures for Certain Commercial Items

5113.500 General

1. Urgent Actions

For Competition Advocate level J&As, concurrence from the Competition Advocate and Legal Advisor must be obtained **PRIOR** to issuance of award (including an undefinitized action) of an urgent action if the J&A approval will not be obtained until after award. This concurrence can be verbally, via email, or via Microsoft Teams and is to ensure Competition Advocate and Legal are in agreement with the use of this authority before award is made.

2. Competition Advocate Sync Process

All teams with limiting competition documents over \$750K are required to participate in the Competition Advocate Sync. See paragraph 5106.303-2-90(2) for further instructions.

PART 15 – CONTRACTING BY NEGOTIATION

SUBPART 15.3 – Source Selection

5115.303 Responsibilities.

When routing an appointment letter for SCO approval, the PCF folder is required to include evidence showing the (SSA nominee completed the required ethics briefing (i.e., an email or memo from the Legal Advisor that conducted the briefing)).

SUBPART 15.4 – Contract Pricing

5115.402-90 Pricing Guidance

1. This section establishes the ACC-RI guidance for requesting the services of the Pricing Directorate. The requirement of when to seek Pricing Directorate support is based on the dollar value and type of action as summarized in the table below.

Action	Value
Cost Analysis	\$5,000,000
Price Analysis with Adequate Price Competition*	\$10,000,000
Price Analysis without Adequate Price Competition*	\$5,000,000
Solicitation Development	\$10,000,000
Source Selection Evaluation	\$10,000,000

*See FAR 15.403-1(c)(1) and DFARS 215.403-1(c)(1) for the standards of “Adequate price competition”

a. All requests for Pricing Directorate support shall be submitted through the ACC-RI Sharepoint Pricing Support Tool (PST) found at [ACC-RI PST](#). The information included within the application shall be filled out completely to assist with the case assignment. Questions relative to entering a request in the PST shall be directed to a Pricing Branch Chief at acc-ri-pricing-management-caselog-emails@army.mil.

b. Contracting teams are encouraged to engage Pricing support early in acquisition process.

c. Solicitation Development:

- i. The Pricing Directorate will assist in development of the Cost or Price Factor evaluation methodology; drafting the Cost or Price sections of the Instructions, Conditions, and Notices to Offerors or Respondents/Section L (or equivalent) and the Evaluation Factors for Award/Section M (or equivalent); and creating evaluation templates and/or Price Summaries or Matrices (when appropriate).

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- ii. Solicitations that require the submission of certified cost or pricing data shall include the DFARS provision 252.215-7009 Proposal Adequacy Checklist as an attachment to the request for proposal. See [attachment 15.1](#) to the AI Supplement for the current checklist version. The checklist provides a guide for the type and amount of information required within a thorough, accurate, and complete proposal. The completed checklist shall be provided with an offeror's submission of certified cost or pricing data and reviewed by the Contracting Officer prior to requesting a cost analysis. Ensuring cost proposals are adequate upon initial submission will streamline the cost analysis process.
- d. Negotiation Support: Contracting teams are highly encouraged to include Contract Pricing throughout the negotiation process for acquisitions where pricing support has been provided. The Pricing Directorate can assist with adjusting and formulating positions, communicating positions, and preparing narratives in support of negotiation documentation.
- e. Source Selection Evaluation Support: The Pricing Directorate will provide analysts to serve as the Price Factor Chair and Price Evaluation team on source selections. The source selection evaluation services provided may include, as applicable, performing Cost Realism analyses, Price Analyses, and/or performing Unbalanced Pricing Evaluations (IAW the solicitation/RFP evaluation methodology).
- f. Pricing Support may be requested at any dollar value. Resources are also available to assist Contracting Personnel in completing actions below the thresholds shown in the table above.
 - i. "Pricing Coach" – request a Price/Cost Analyst's guidance in performing analyses below the dollar values established for requiring Pricing to conduct an evaluation. This support shall be requested through the PST.
 - ii. Pricing Training is available at the [Pricing Directorate SharePoint](#)
 - iii. Contact a Pricing Branch Chief if you have questions about a specific action at acc-ri-pricing-management-caselog-emails@army.mil.
- g. Other support may be requested at any dollar value through the PST, please specify the type of support in the notes section. Other support includes, but is not limited to:
 - i. Acquisition Planning, for example, assistance in determination of contract type and Contract Line Item Number (CLIN) structure
 - ii. Whiteboard support
 - iii. Economic price adjustment (EPA) evaluations
 - iv. Indirect rate reviews
 - v. Buy vs. lease evaluations
 - vi. Negotiation support

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- vii. Dun & Bradstreet reports for assisting in responsibility determinations; contractor DUNS number is required
 - viii. Any other action that does not fall into one of the other categories
- h. Pricing Division support is not required, but is available, for the following types of requests:
- i. Development of Independent Government Estimates (IGE) - Additional guidance for IGE development can be found on the Pricing SharePoint page
 - ii. Financial Analysis
 - iii. Review of Determination of Fair and Reasonable Price
 - iv. Orders against a contract where price reasonableness has previously been established
 - v. Purchases from General Services Administration (GSA); Computer Hardware, Enterprise Software, and Solutions (CHES); or other arrangements with ceiling prices

2. Request for Defense Contract Audit Agency (DCAA) Audits: PCOs in coordination with Pricing, should consider requesting field pricing assistance for actions meeting the conditions described at [DFARS PGI 215.404-2\(a\)](#). Additionally, PCOs should consider requesting DCAA audits for actions exceeding the thresholds at [DFARS PGI 215.404-2\(c\)\(i\)](#). All DCAA audits and services shall be requested by the Pricing Directorate. The Pricing Directorate will assist with coordinating with the cognizant DCAA office, determining the scope of any audit requests, and/or limited scope reviews. After coordination with Pricing, should the PCO decide to forego an audit for any action exceeding the threshold per DFARS PGI, this decision and justification shall be documented in an MFR. DCAA is often available to support contract negotiations after audit and analyses are completed.

5115.406-3 Documenting the Negotiations.

1. Pre-Negotiation Objective Memorandums (POM) and Price Negotiation Memorandums (PNM) require Pricing review and concurrence when the Pricing Directorate performed a cost analysis on the action. Requests shall be submitted through the PST. Please notify the assigned analyst when the final, fully signed, PNM is available in PCF to ensure Pricing cases are closed and negotiated savings are documented.

2. To avoid duplicating documentation, competitive source selections may utilize POM and PNM checklists in lieu of a formal POM and PNM. Sole source actions may NOT utilize the checklists. If utilizing a POM or PNM checklist, ensure the documentation listed on the checklist (1-6 on POM and 1-5 on PNM) is provided to the individuals

concurring and approving on the checklist. A copy of these checklists can be found under Samples at: [POM/PNM Checklist](#)

3. Approvals*:

- Under \$2M** - Contracting Officer
- \$2M - \$50M - Branch Chief
- Over \$50M – Director

* The thresholds listed above must consider both increases and decreases. (i.e., a decrease of \$1.5M and an increase of \$1M is a \$2.5M action and requires Branch Chief approval; a decrease of \$25M and an increase of \$30M is a \$55M action and requires Director approval).

** If the Pricing Directorate non-concurs on a POM or PNM, the approval authority of the POM or PNM is one level higher than the Contracting Officer.

SUBPART 15.5 – Preaward, Award, and Postaward Notifications, Protests, and Mistakes

5115.506 Postaward debriefing of offerors.

In order to ensure full transparency through postaward debriefings, redacted SSDDs shall be sent to offerors in association with all postaward debriefing slides.

PART 16 – TYPES OF CONTRACTS

SUBPART 16.5 – Indefinite-Delivery Contracts

5116.505 Ordering.

1. Urgent Actions

Concurrence from the Competition Advocate and Legal Advisor must be obtained **PRIOR** to issuance of award (including an undefinitized action) of an urgent action if the JEFO approval will not be obtained until after award. This concurrence can be verbally, via email, or via Microsoft Teams and is to ensure Competition Advocate and Legal are in agreement with the use of this authority before award is made.

2. Competition Advocate Sync Process

All teams with limiting competition documents over \$750K are required to participate in the Competition Advocate Sync. See paragraph 5106.303-2-90(2) for further instructions.

5116.505-91 Multiple award task or delivery order contracts.

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1. As a best practice, it is recommended that task/delivery order competitions utilize FAR 15 source selection procedures IAW the DoD Source Selection Procedures, dated August 20, 2022, paragraph 1.2.2. Therefore, when utilizing FAR 15 procedures, the following applies to the appointment of an SSA on any request for task or delivery order proposals:

a. The Army Acquisition Executive (AAE) shall appoint the SSA for acquisitions for systems and services, acquired through the Defense Acquisition System, for which milestone decision authority is at the AAE or Office of the Secretary of Defense level IAW the applicable Adaptive Framework DoDI.

b. The DASA(P) shall appoint the SSA for service acquisitions valued at \$500M or more.

c. The SCO shall appoint the SSA for acquisitions greater than \$100M, or if an individual other than the PCO will serve as the SSA. The SCO must coordinate with the responsible Program Executive Officer prior to nominating or appointing an SSA for a source selection in support of an Army acquisition program.

2. For task/delivery order competitions not utilizing FAR 15 procedures, the following applies to the appointment of a Task Order Decision Official/Delivery Order Decision Official (TODO/DODO) on any request for task or delivery order proposals: The SCO shall appoint the TODO/DODO for acquisitions greater than \$100M, or if an individual other than the PCO will serve as the TODO/DODO.

3. When routing the appointment letter for SCO, DASA(P) or AAE approval, the PCF folder is required to include evidence showing the SSA/TODO/DODO nominee completed the required ethics briefing (i.e., an email or memo from the Legal Advisor that conducted the briefing).

PART 17 – SPECIAL CONTRACTING METHODS

SUBPART 5117.74 – Undefined Contract Actions

5117.7404 Limitations

1. Conditions for use. An UCA may be used:

a. Only in those circumstances for which no other contract method will satisfy the immediate requirement; AND

b. The Government's interests demand that the contractor be given a binding commitment so that work can start immediately; AND

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c. Negotiating a definitive contract is not possible in sufficient time to meet the requirement.

2. UCA requirements. A UCA shall:

a. Be as complete and definite as feasible under the circumstances, containing as many terms and conditions as can possibly be agreed upon between the Government and the contractor.

b. Include a price ceiling. (Note that the terms “price ceiling” and “not-to exceed price” are used interchangeably with one another in the DFARS. In this topic as well as in the UCA template, the term “price ceiling” will be utilized in lieu of “not-to-exceed”).

c. Be definitized as early as possible, but no later than (NLT) 180 days after the contractor submits a qualifying proposal; or the date on which the amount of funds obligated under the contract action is equal to more than 50% of the not to exceed.

d. Be supported with an Impact Statement from the customer, which fully explains the need to begin performance before definitization, including the adverse impact on agency requirements resulting from delays in beginning performance. (This information should also be included in the request for UCA approval (UCA D&F)). Expiring funding is not a valid justification for a UCA.

e. The UCA D&F shall be approved in writing by the Head of the Contracting Activity (HCA) prior to the PCO entering the UCA. Note that this approval authority has been delegated to the SCO for UCA D&Fs over \$50M. The approval authority has been delegated to the CoCO (Director) for UCA D&Fs valued at \$50M or less.

f. The PCO shall also obtain SCO/CoCO approval when he/she intends to modify the scope of an already-approved UCA (for example, if the PCO needs to increase the price ceiling or obligated amount of a previously approved UCA D&F). This shall be accomplished by a UCA Amendment. The Amendment shall detail the reason for the change, and the amount of the increase, if applicable.

3. Definitization Timeframe. DFARS 217.7404-3 states that UCAs shall be definitized within 180 days after the contractor submits a qualifying proposal; or the date on which the amount of funds obligated under the contract action is equal to more than 50% of the not-to-exceed price.

4. Procedures/Routing of UCA D&Fs: All UCA D&Fs over \$50M require SCO approval. All UCA D&Fs valued at \$50M or less require CoCO (Director) approval. To route the UCA D&F for approval:

a. Contact Ashlee Asplund or Alejandra Figueroa for assignment of a tracking number prior to commencement of the routing process of the UCA D&F.

b. Ensure that your PCF folder contains the following documents:

- 1) The UCA D&F;
- 2) A Statement of Impact or Urgency prepared by the requiring activity (see Attachment 17.2 for required information) and;
- 3) A copy of the approved J&A, JEFO, or LSJ if competition is being restricted.

c. For UCAs valued at \$50M or less, staff the UCA D&F IAW [Attachment 1.2](#) for CoCO (Director) approval.

d. For UCAs valued over \$50M, staff the UCA D&F as IAW [Attachment 1.2](#) for SCO approval.

*See Attachment 17.1 for a list of UCA Frequently Asked Questions.

PART 33 – PROTESTS, DISPUTES, AND APPEALS

SUBART 5133.1 – Protests

5143.102 General.

Prior to taking any corrective action on any protest, concurrence from CoCO is required.

PART 43 – CONTRACT MODIFICATIONS

SUBPART 5143.2 – Change Orders

The guidance in this section is applicable only to UCOs with an estimated value greater than \$5M IAW DFARS 243.204-70-1(a).

5143.201 General.

1. UCO vs. UCA. **Not every change contemplated under a contract falls under the Changes clause; i.e. not every contract change can be treated as a UCO.** The following is a rule of thumb to help determine whether a particular action should be treated as a UCO versus an UCA (under DFARS 217.74):

a. In general, if your action necessitates a Justification and Approval (J&A), Limited Sources Justification (LSJ), or Justification for Exception to Fair Opportunity (JEFO), even if it is being awarded via a modification to an existing contract, it would be considered “out-of-scope” of the contract, and be treated as a UCA versus a UCO.

b. For actions which do not necessitate a J&A, LSJ, or JEFO:

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1) If the action is a contract modification or task/delivery order modification which falls within the scope of the Changes clause of your respective contract (i.e., it is a Change Order), it would be considered a UCO. However, note that the Changes clauses are very specific in terms of what actions fall under their purview. Not every change contemplated under a contract falls under the Changes clause; i.e. not every contract change can be treated as a UCO. **If the action is determined to be a UCO, the PCO shall address in the UCO D&F (1) how the action was determined to be within the scope of the contract, and (2) how the action was determined to be within the scope of the contract's Changes clause.**

2) If the action is a basic contract award or a task or delivery order award, it is not a "Change Order," and should be treated as an UCA.

3) If the action is a contract modification or a delivery order/task order modification which does NOT fall within the scope of the Changes clause of your contract, the action should be considered an UCA.

4) Note that subtle nuances of a particular acquisition may impact whether an UCA or UCO is appropriate for your immediate circumstance; if there is a question as to whether your action constitutes an UCA or a UCO, recommend contacting your Attorney-Advisor.

2. Scope of the Changes Clauses. As noted above, PCOs/Contract Specialists must determine (and address in the UCO D&F) what category or designated area the unpriced change falls under within the Changes clause. For example, FAR 52.243-1 Alternate I (applicable to fixed-price services contracts), permits the Contracting Officer to make changes within the general scope of the contract only in the following designated areas:

- a. Description of services to be performed;
- b. Time of performance (hours of the day, days of the week, etc.) (note this does NOT include an extension of the period of performance); and
- c. The place of performance of the services.

3. UCO requirements. A UCO shall:

- a. Be supported by a UCO Determination and Findings (D&F), signed by the PCO prior to issuance of the action.

- b. Include a price ceiling. (Note that the terms "price ceiling" and "not-to-exceed price" are used interchangeably with one another in the DFARS. In this topic as well as in the UCO D&F template, the term "price ceiling" will be utilized in lieu of "not-to-exceed"). The price ceiling is the estimated value of the change for the immediate period of performance, which should not be exceeded when the action is definitized.

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c. Be definitized as early as possible, but no later than (NLT) 180 days after issuance of the action; or the date on which the amount of funds obligated under the contract action is equal to more than 50% of the not-to-exceed price.

d. Cite the applicable Changes clause as the authority for the action/the modification authority on the SF30.

e. Within the UCO D&F, the PCO shall address how the action was determined to be (1) within the scope of the contract, and (2) how it was determined to be within the scope of the contract's Changes clause.

4. Definitization Timeframe. DFARS 243.204-70-3 states that UCOs shall be definitized within 180 days after issuance of the change order; or the date on which the amount of funds obligated under the change order is equal to more than 50% of the not-to-exceed price. Note that DFARS 243.204-70-3 allows for the definitization schedule to be extended, as long as it does not exceed the date that is 180 days after the contractor submits a qualifying proposal.

5. Procedures/Routing/Review of UCOs:

a. UCO D&Fs are approved at the PCO level. Accordingly, the UCO D&F itself does not necessitate a separate staffing/review/approval process. The D&F will be reviewed as part of the modification/Notice to Proceed review (review is required prior to issuance of the change order/Notice to Proceed to the contractor).

b. The level of review required is NOT dictated by the obligated amount of the UCO. Review level is based on the total estimated dollar value of the change for the life of the contract, which may or may not be equal to the price ceiling of the UCO. For example: you may be issuing a change which impacts the immediate period of performance as well as future, unexercised options. While the price ceiling of the UCO will be based on the estimate for the immediate period of performance only, for purposes of determining the review level required, you would use the estimated value of the change for the remainder of the contract. If you have a question regarding the review level required, please contact one of the POCs identified in paragraph iii below.

c. The following is the review procedure for UCO modification/Notices to Proceed:

1) Contact Ashlee Asplund or Alejandra Figueroa for assignment of a tracking number for the UCO, prior to commencement of the routing/review process.

2) Ensure that your PCF file contains the following documents, at a minimum*:

a) The UCO D&F;

b) The change order (contract modification/SF30 or Notice to Proceed letter);

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c) Documentation reflecting what the “change” is (e.g., the applicable Engineering Change Proposal (ECP) or revised Performance Work Statement (PWS));

d) A funding document providing committed funds for at least the amount obligated under the UCO;

e) Contract Services approval (if a service contract) covering the anticipated increase in dollars and Contractor Manpower Equivalents associated with the change;

f) The Independent Government Estimate (ICE) associated with the change;

g) The draft Contract Action Report (CAR);

h) System for Award Management (SAM) documentation reflecting (1) that the contractor has an active SAM registration; and (2) that the contractor does not have any active exclusions.

i) Other documents may be required.

3. Staff the PCF modification cabinet “for review” in PCF IAW [Attachment 1.1](#), based on the dollar value. A CRB is required if the UCO price ceiling OR the total estimated value of the change is \$100M or more.

*See [Attachment 43.1](#) for a list of UCO Frequently Asked Questions.

PART 45 – GOVERNMENT PROPERTY

SUBPART 5145.1 - General

Contracting teams are required to complete the [Property Pre-Solicitation Checklist and the Property Pre-Contract Award Checklist](#) for all actions that require a property review. Actions that fall into one of the below categories must include the property clauses and requires that the Contracting Officer conduct a property review prior to solicitation release and prior to award:

- Cost reimbursable solicitations/contracts
- Fixed priced solicitations/contracts with cost CLINs
- Fixed priced solicitations/contracts where Government Furnished Property (GFP) will be provided
- FAR Part 12 solicitations/contracts where GFP will be provided
- Solicitations/contracts with T&M CLINs

The Contract Specialist is required to complete the initial review by annotating answers in Column D of the spreadsheet. The Contracting Officer will then conduct a validation in Column E during their cabinet review. The completed checklist must be filed in the PCF cabinet at the following locations:

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- Property Pre-Solicitation Checklist: B02; Reviews/Approvals; Solicitation Review Folder
- Property Pre-Contract Award Checklist: D01; Reviews/Approvals; Contract Specialist/Contracting Officer Pre-Review Checklist Folder

The following documents can be found on the [Contract Administration Training Center sharepoint](#) page to assist in answering questions/requirements in the checklist:

- Justification memorandum (standardized ACC form and Requiring Activity requirement) (Questions ACC-4502 and 4503)
- Example CDRL Property Management System Procedure (Contract award CDRL)
- Example CDRL Contractor Acquired Property delivery report (to be used with requirement of NSP CLIN, question ACC-4518)

PART 49 – TERMINATION OF CONTRACTS

SUBPART 49.607- Delinquency notices.

Prior to issuing any controversial correspondence, to include a cure notice or show cause notice, coordination must take place with legal. Additionally, the PCO must send an email to the SCO summarizing the situation, along with a copy of the notice. The email must be forwarded to the SCO through the PCO-Branch Chief-Director. Once the SCO has received the email notifying him of the situation, the PCO can issue the notice.

PART 52 – SOLICITATION PROVISIONS AND CONTRACT CLAUSES

5152 – Solicitation Provisions and Contract Clauses

ACC-RI's local solicitation/contract narratives can be found at [Attachment 52.1.](#)

ATTACHMENTS

Attachment 1.1 – Staffing for Boards and Waived Boards

Attachment 1.2 – Staffing Documents Excluding Acq Plans/Strategies

Attachment 1.3 – Acquisition Strategy Routing

Attachment 1.4 – Acquisition Plan Routing

Attachment 1.5 – ETMS2 Routing Process to DASA(P), ASA(ALT), SPE, AAE

Attachment 1.6 – ETMS2 Information Sheet

Attachment 1.7 – ACC-RI SCO PMR/SAR Guidebook

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Attachment 1.8 – COR Smartbook

Attachment 1.9 – COR Management Plan

Attachment 15.1 – Proposal Adequacy Checklist

Attachment 15.2 – Staffing of POMs/PNMs

Attachment 17.1 – UCA Frequently Asked Questions

Attachment 17.2 – Statement of Impact Required Info

Attachment 43.1 – UCO Frequently Asked Questions

Attachment 46.1 – ACC-RI Quality Assurance Plan

Attachment 52.1 – Local Narrative SOP

Appendix AA – Other Transaction Authority Guide